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Case Number: 22SMCV01410 Hearing Date: September 9, 2026 Dept: P

Tentative

Ruling

Lauren

Fallieras v. Subaru of America, Inc., et al., Case No. 22SMCV01410

Subaru

of America's Motion for Judgment on the Pleadings

Hearing

Date: September 9, 2026

Background

Plaintiff

Fallieras sued defendants Subaru of America, Inc. (SOA) and Thousand Oaks-S, Inc. dba DCH Subaru of Thousand Oaks (DCH) alleging various Song-Beverly claims against SOA and negligent repair against DCH only. SOA and DCH cross-complained against one another. Plaintiff's claims were settled on 3/13/24. Dealer DCH cross-complained against SOA, seeking (1) express indemnity; (2) implied indemnity; (3) equitable indemnity and (4) declaratory relief. After several demurrers, DCH dismissed its cross-complaint.

SOA's

cross-complaint alleges four causes of action for (1) indemnity, (2) declaratory relief, (3) apportionment of fault and contribution, and (4) express indemnity. SOA alleges that DCH was negligent in repairing Plaintiff's vehicle and owes it fees. (SOA Cross-Complaint, ¶¶ 3, 6.)

Plaintiff

and SOA have settled, and the underlying complaint was dismissed. The only remaining pleading is SOA's cross-complaint against DCH.

On

November 14, 2024, DCH moved for judgment on the pleadings on SOA's cross-complaint. On January 16, 2026, the Court denied DCH's motion.

On July

27, 2026, SOA moved for judgment on the pleadings on its own cross-complaint. As of September 4, 2026, the Court has not received opposition from DCH.

Governing

Law

The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer. The motion may be granted if it appears that a party is entitled to judgment as a matter of law based on the pleadings and matters that may be judicially noticed (*Bezirdjian v. O'Reilly* (2010) 183 Cal.App.4th 316, 321-322, citing *Schabarum v. California Legislature* (1998) 60 Cal.App.4th 1205, 1216.) Matters which are subject to mandatory judicial notice may be treated as part of the complaint and may be considered without notice to the parties. Matters which are subject to permissive judicial notice must be specified in the notice of motion, the supporting points and authorities, or as the court otherwise permits. (*Id.*) The motion may not be supported by extrinsic evidence. (*Barker v. Hull* (1987) 191 Cal.App.3d 221, 236.)

For a

plaintiff to prevail on a motion for judgment on the pleadings, they must show:

(1) "that the complaint states facts sufficient to constitute a cause or causes of action against the defendant and [(2)] that the answer does not state facts sufficient to constitute a defense to the complaint." (Code Civ. Proc. § 438(c)(A), emphasis added.)

A

plaintiff's Motion for Judgment on the Pleadings is the equivalent to a demurrer to an answer. (*Engine Manufacturers Association v. California Air*

Resources Board (2014) 231 Cal.App.4th 1022.) In any case in which the answer, fairly construed, suggests that the defendant may have a good defense, a motion for judgment on the pleadings should not be granted. A plaintiff's motion for judgment on the pleadings should be denied if defendant's answer raises a material issue. (Dvorsky v. Balkum (1931) 118 Cal.App. 364, 367 ["In other words, it may be, in legal effect, a general demurrer but not a special demurrer to any of the pleadings."].)

Additionally, a motion for judgment on the pleadings must be accompanied by a meet and confer declaration demonstrating an attempt to meet and confer in person or by telephone, at least five days before the date a motion for judgment on the pleadings is filed. (Code Civ. Proc., § 439.) A statutory motion for judgment on the pleadings must be filed thirty days before trial. (Ibid.) Common law motions for judgment on the pleadings are not bound by the deadline or the meet and confer requirement and may be made at any time. (Sofias v. Bank of America (1985) 172 Cal.3d 583, 585-586 (timing); Code Civ. Proc. § 439(a) (meet and confer requirement for statutory motions).) There is no fundamental difference between a common law and statutory motion for judgment on the pleadings. (Cordova v. 21st Century Ins. Co. (2005) 125 Cal.4th 89, 109.)

Discussion

SOA states that the parties met and conferred multiple times on the issues raised by this motion, but does not detail if the meet-and confer was by email or by phone. (Rugarello Decl., ¶ 3.) On a statutory motion for judgment on the pleadings, the parties must meet and confer by phone. Regardless, failure to meet and confer is not grounds for denying a motion for judgment on the pleadings. (Code Civ. Proc. § 439.)

The legal issues SOA raises in this motion are identical to the issues DCH raised on its Motion for Judgment on the Pleadings in January. On that motion, the Court found that:

Under the Crawford Doctrine, an indemnitor has a duty to defend from the moment claims falling under the indemnity clause are alleged against the indemnitee. (Crawford v. Weather Shield Mfg., Inc. (2008) 44 Cal.4th

541, 558.) The burden is on the indemnitor, DCH here, to “conclusively establish” that there is no possibility these claims are covered by the indemnity agreement. (*Crawford v. Weather Shield Mfg., Inc.*, *supra*, 44 Cal.4th at 568.)

There

are two indemnity provisions in the Dealer Agreement. In section 19.1, DCH agrees to indemnify SOA from any expense, loss, liability, and damage arising from DCH’s negligent or improper repair or DCH’s negligence, error, or omission. The section further provides that if DCH fails to undertake the defense, DCH may be liable for attorneys’ fees and court costs associated with SOA’s defense. (RJN, Exhibit D, ¶ 19.1)

The

second indemnity provision, section 19.2, provides that SOA indemnifies DCH for manufacturing and design defects as long as the product was sold in the course of DCH’s business, no default has been entered against DCH, and DCH co-operates fully. (RJN, Exhibit D, ¶ 19.2.)

Since

the indemnity agreement applies to “any claim or legal action” arising out of DCH’s negligence or SOA’s manufacturing or design defect, the Court will consider all the allegations in Plaintiff’s complaint. (RJN, Exhibit D, ¶¶ 19.1, 19.2.) In her complaint, Plaintiff alleged electrical system defects, engine defects, battery defects, and stalling defects, and that the vehicle did not conform to SOA’s warranty. (RJN, Exhibit A, ¶15.) Plaintiff’s first cause of action for violation of Civ. Code § 1793.2(d) alleges that SOA and “its representatives in this state have been unable to service or repair the vehicle to conform to the applicable express warranties.” (*Id.* at ¶ 27.) Plaintiff’s second cause of action for violation of Civ. Code § 1793.2(b) alleges that “Defendant Subaru and its representative failed to commence the service or repairs within a reasonable time and failed to service or repair the vehicle as to conform to the applicable warranties. . .” (*Id.* at ¶ 33.) Plaintiff’s third cause of action for violation of Civ. Code § 1793.2(a)(3) alleges that SOA failed to equip its service facilities with sufficient parts to effect repairs during the warranty period. (*Id.* at ¶ 38.) Plaintiff’s fourth cause of action for violation of the implied warranty of merchantability does not discuss repair services. (*Id.* at ¶¶ 39-43.) Plaintiff’s fifth cause of action for negligent repair is alleged against DCH for negligent repair. (*Id.* at ¶ 45.)

In

turn, Subaru's cross-complaint alleges that DCH is wholly responsible for the vehicle's defects. (RJN, Exhibit B, ¶ 5.)

Under

Plaintiff's complaint, the only cause of action that could not be attributable to DCH is her third cause of action. However, SOA's complaint alleges that its expenses incurred in the litigation are wholly attributable to DCH's negligence. (RJN, Exhibit B, ¶ 5.)

(Minute

Order (1/14/2026), pp. 3-4.)

Taking the

facts alleged in SOA's cross-complaint to be true, DCH is wholly responsible for SOA's damages, and SOA's cross-complaint states a claim against DCH.

Since SOA moves

for judgment on the pleadings on its own cross-complaint, the Court next must determine if DCH's answer to Subaru's cross-complaint states a defense to Subaru's cross-complaint.

DCH's

answer asserts thirteen defenses: (1) failure to state a claim; (2) statute of limitations; (3) comparative negligence; (4) third party responsibility; (5) failure to mitigate damages; (6) assumption of the risk; (7) estoppel; (8) waiver; (9) unclean hands; (10) laches; (11) in pari delicto; (12) non-economic damages; and (13) right to amend.

For an

affirmative defense to survive a demurrer, it must only plead the ultimate fact and give notice to the opposing party of a potentially meritorious defense.

(See, *Welch v. Derian* (1964) 224 Cal.App.2d 750, 754; *Hata*, supra, 31 Cal.App.4th 1791, 1804-05.)

DCH's

first affirmative defense, failure to state a claim, and its thirteenth affirmative defense, right to amend, do not apply because the Court has determined that SOA stated a claim for indemnity in its cross-complaint. However, DCH's other defenses claim the ultimate facts of the defenses they assert, and

therefore state a defense to SOA's cross-complaint.

Therefore,

SOA's Motion for Judgment on the Pleadings must fail. The Court notes that SOA's arguments, brought on a motion for summary judgment and properly supported by admissible evidence, may have succeeded. The legal standard on a Plaintiff's motion for judgment on the pleadings makes it extremely difficult for the moving party to prevail if the defendant filed a proper answer.

Conclusion

SOA's

Motion for Judgment on the Pleadings is DENIED.